CIMB

i*Trade@CIMB

Corporate

ACCOUNT APPLICATION FORM

Name of Applicant : _____

(also referred to herein as Applicant, we, us or our)

To be completed by CIMB		
Type of Account	**Client Code**	**CDS Account Number**
☐ Direct Trading Account		0 6 5 - -
☐ Securitised Trading Account- Direct		0 6 5 - -
☐ Securitised Trading Account- Nominee		0 6 5 - -
Remarks:		

CIMB INVESTMENT BANK BERHAD (18417-M)
(A PARTICIPATING ORGANISATION OF BURSA MALAYSIA SECURITIES BERHAD)

Principal Office : 10th Floor, Bangunan CIMB Jalan Semantan Damansara Heights 50490 Kuala Lumpur Malaysia
Telephone **(603) 2084 8888** Facsimile **(603) 2084 8899**

Correspondence Address : 9th Floor, Commerce Square Jalan Semantan Damansara Heights 50490 Kuala Lumpur Malaysia
Telephone **(603) 2084 9999** Facsimile **(603) 2084 9888**

Branch Offices

Penang : Ground Floor Suite 1.01 Menara Boustead Penang No. 39, Jalan Sultan Ahmad Shah 10050 Penang Malaysia
Telephone **(604) 238 5900** Facsimile **(604) 229 1616**

Kuching : Aras 1 (Utara) Wisma STA No. 26, Jalan Datuk Abang Abdul Rahim 93450 Kuching Malaysia
Telephone **(6082) 358 688** Facsimile **(6082) 358 689**

Kota Kinabalu : 1st & 2nd Floor Central Building Jalan Sagunting 88000 Kota Kinabalu Sabah Malaysia
Telephone **(6088) 328 878** Facsimile **(6088) 328 900**

Melaka : Ground, 1st & 2nd Floor No. 191, Taman Melaka Raya Off Jalan Parameswara 75000 Melaka Malaysia
Telephone **(606) 289 8800** Facsimile **(606) 289 8810**

Website : Group : **www.cimb.com** Internet Trading : **www.itradecimb.com**

GUIDE TO COMPLETE THE APPLICATION FORM

Follow these steps to open a Corporate Trading Account with CIMB Investment Bank Berhad (also referred to herein as CIMB, you or your Company)**:**

1. Complete all applicable fields of the Corporate Account Application Form (Part A to H and Part L to M). Please type or write using **BLOCK LETTERS**. Any amendments made must be legible and countersigned by the authorized signatory(ies).

2. The completed form must be returned together with **two (2) original certified true copies** of each of the following supporting documents:

Company incorporated under the Companies Act 1965	(a) Board Resolution (b) Power of Attorney (if applicable) (c) NRIC / passport of the Authorised Signatories (both sides) (d) Memorandum & Articles of Association (e) Form 8 or 9, 24 or if unavailable, the latest Annual Return, 44 and 49 (Form 13 and 20 only if applicable) (f) Latest audited accounts
Society registered under the Societies Act 1966 or Co-operatives Act 1993	(a) Board Resolution / Minutes of meeting (b) Power of Attorney (if applicable) (c) NRIC / passport of the Authorised Signatories (both sides) (d) Constitution/By-laws of the Society (e) Certificate of registration (f) Latest financial statement
Corporations incorporated by an Act of Parliament or State Enactment and other Statutory Bodies	(a) Board / Investment Panel's Resolution (b) Power of Attorney (if applicable) (c) NRIC / passport of the Authorised Signatories (both sides) (d) In respect of statutory body, a copy of the Act/Enactment incorporating the said body (e) Latest financial statement
Trust Foundation	(a) Board Resolution / Minutes of meeting (b) Trust Deed (c) Power of Attorney (if applicable) (d) NRIC / passport of the Authorised Signatories (both sides) (e) Certificate of registration (f) Latest financial statement
Foreign incorporated companies	Foreign incorporated company's equivalent of the legal documentation to support evidence of ownership, company name, registration number, registered address, place of incorporation and financial statement.

3. The Board Resolution must state:

   (a) authorisation to open and operate securities trading account and Central Depository Securities (CDS) Account (if applicable) with CIMB INVESTMENT BANK BERHAD;

   (b) authorisation to deal in securities;

   (c) the name, designation, NRIC / Passport number and specimen signature of persons authorised to operate the account; and

   (d) the affixation of common seal or company rubber stamp on all documents.

4. In addition to the opening of a Corporate Trading Account with CIMB, the applicant may be required to open a CDS Account with Bursa Malaysia Depository Sdn Bhd by completing a separate set of application form (CDS Form) and submitting the relevant documents as stated in the CDS Form.

5. For transactions in US securities through CIMB, the applicant is required to complete a US tax declaration form.

Important Notes:

1. Please read the terms and conditions in the accompanying pages.

2. The application herein is subject to the approval of CIMB and CIMB reserves the right to reject the application without giving any reasons.

A. ACCOUNTS THAT WE NEED

✓ **Tick where applicable**

Type of Broking:

☐ Conventional Broking ☐ Islamic Broking

Type of Account:

☐ Direct Trading Account ☐ Securitised Trading Account - Direct ☐ Securitised Trading Account - Nominee *(applicable if client wishes to apply for an account with CIMSEC Nominees)*

YES, We wish to apply for the following facilities:-

☐ Online Trading i*Trade@CIMB ☐ Cross Border Securities Trading

B. CORPORATE DETAILS

Name of Applicant

Account Qualifier
(Beneficial owner)

Registration No. Country of Incorporation ☐ Malaysia ☐ Others _____

Type of Organisation ☐ Private Company ☐ Public Limited ☐ Government Agency
☐ Society/Association ☐ Others (Please specify) _____

Nature of Business _____ Date of Incorporation

Registered Address
(as per registration doc.)
Postcode

Business Address
(if differs from above)
Postcode

Business Premise ☐ Own Property ☐ Mortgage ☐ Rented

Telephone No. Telex No.

Fax No. Website _____

Ultimate Holding Company (If applicable) _____

C. FINANCIAL INFORMATION

As At (DD/MM/YYYY)

Authorised Share Capital

Issued/Fully Paid Up Capital

Total Tangible Assets

Total Liabilities

Net Shareholders' Funds

Net Current Assets

Profit After Taxation in Preceding 4 Years

Year _____ Year _____

Year _____ Year _____

D. BANK REFERENCE

Bank	Branch	Account Number	Account Type

E. INVESTMENT OBJECTIVE & EXPERIENCE

Investment Objective ☐ Short Term ☐ Long Term ☐ Dividend ☐ Interest ☐ Capital Growth

Risk Tolerance ☐ Aggressive ☐ Moderate ☐ Conservative

Investment Experience (1) Equities: _____ Year(s) (2) Futures: _____ Year(s)

F. CONTACT OF PERSONS AUTHORISED TO TRADE AND/OR OPERATE THE ACCOUNT AS STATED IN THE BOARD RESOLUTION

	Name	Designation	Contact Phone Number	Email
1				
2				
3				
4				
5				
6				
7				
8				

(Please attach a separate sheet if the space provided is insufficient)

G. SUBSTANTIAL INDIVIDUAL SHAREHOLDERS (5% OR MORE)

	Name		Name
1		5	
2		6	
3		7	
4		8	

(Please attach a separate sheet if the space provided is insufficient)

H. OTHER INFORMATION

Does the Applicant have a trading account with other brokers? ☐ Yes ☐ No

Does the Applicant's related companies or its associate companies have a trading account with CIMB Investment Bank Berhad? If yes, please provide the following details: ☐ Yes ☐ No

	Name	Account No.
1		
2		
3		

I. CALL WARRANTS RISK DISCLOSURE STATEMENT

We understand and accept the following:

1. the purchaser of a call warrant is subject to the risk of losing the full purchase price of the call warrant and all transaction costs;
2. in order to realise any value from a call warrant, it is necessary to sell the call warrants or exercise the call warrants on or before their expiry date;
3. under certain conditions, it may become difficult to sell the call warrants;
4. upon exercise of the call warrants, the issuer may settle its obligations via actual delivery of the underlying assets, in cash or a combination of both depending on the terms of the issue of the call warrants;
5. the placing of contingent orders, such as "stop-loss" or "stop limit" orders, will not necessarily limit our losses to the intended amount. Market conditions may not make it possible to execute such orders;
6. the high degree of leverage that is obtainable from call warrants because of the small initial outlay, can work against us as well as in our favour. The use of the leverage can lead to large losses as well as gain; and
7. this brief statement cannot disclose all risks associated with trading in call warrants.

J. MEMORANDUM OF DEPOSIT *(Applicable to Securitised Trading Account only)*

In consideration of you granting and/or continuing to grant or make available to us facilities for the trading in stocks, shares and securities on Bursa Malaysia Securities Berhad (Bursa Securities) and/or any other recognised stock exchange or otherwise, we, the undersigned, hereby pledge, mortgage, charge to you or in your favour all the stocks, shares and securities held from time to time in our trading account which have been fully paid for, in our CDS Account, and/or any nominee/custody account of which we are the beneficiary (hereinafter referred to as the "said Securities"); subject the terms and conditions hereof:

1. We confirm that we are the legal and beneficial owner of the said securities and that we are entitled to pledge, mortgage, charge the said Securities to your Company.

2. The said Securities will be a continuing security to your Company for the general balance of our debts due to your Company, which shall include but not limited to any moneys due under our trading account with your Company ("trading account").

3. In the event that any debt remains outstanding in the trading account for more than ten (10) days and where written notice of such debt had been given, your Company may at their sole discretion and at any time thereafter, without giving us any further notice, sell such of the said Securities to settle such debts and any excess amount will be credited to our account, in such event we shall have no recourse against your Company or your Nominees in respect of any loss that we may suffer arising out of or in relation to or connected with such sale.

4. The shares may be registered by your Company in its name or in the name of your Nominees, held in scripless form in CDS Accounts opened in our name, your Company's name or in your Nominees' Pledged Account designated solely for us as the beneficiary. In consideration, we shall also indemnify and keep your Company or your Nominees indemnified against all claims, demands, liabilities, costs and expenses for which your Company or Nominees may be liable, and against all actions, suits, proceedings, claims or demands of any nature whatsoever which may be taken or made against your Company or Nominees or which may be incurred or which may arise directly or indirectly by reason of the registration of the said Securities in the name of your Company and/or the appointment of your Nominees as our nominee or by act or omission in relation thereto.

5. Notwithstanding the aforesaid, neither your Company nor your Nominees shall be answerable or responsible for the loss of or damage to or diminution in value of any of the said Securities, however arising, while the same are in the custody, possession or control of your Company or your Nominees.

   Further, while the said Securities are in the custody, possession or control of your company or your Nominees, your Company or your nominees shall use all reasonable efforts to ensure that any rights issue, bonus or dividends (hereinafter called "corporate actions") declared in respect of the said Securities, are subscribed with our instruction/advice, received or collected by your Company or your Nominees under advice to us. All costs, charges and/or expenses incurred in the course of these corporate actions on the said Securities shall be debited to our trading account.

6. We enclose herewith such duly executed transfer or assignments as are necessary to enable the effectual transfer of the said Securities. The names of the transferee, the date of transfer and the consideration are left in blank and we authorise your Company or your Nominees to fill in the aforementioned details in the transfer forms. In the event that further documents are necessary to effectively transfer the said Securities, we shall immediately upon your Company's demand execute such documents.

7. We hereby acknowledge that your Company will not be liable for any loss or damage of the securities deposited under this account unless such loss or damage is due to your Company's negligence or wilful default. In respect of such loss or damage due to negligence or wilful default, your Company will only be liable for the incidental replacement cost which are confined to the cost of advertisement, scrip fees or any other reasonable costs related to the replacement of the physical share certificates only where appropriate and does not include or oblige you to buy back the securities for us on the Bursa Securities. The replacement securities shall be returned to us upon your Company receiving of the same from the share registrar.

8. We hereby authorise your Company, in the event of the sales of the said Securities, to deliver the same to the purchaser or the legal representative and to credit the proceeds of sales to our account with you to settle any outstanding debts due to you.

9. The said Securities and any cash deposited by us with your Company shall at all times remain our assets and property and shall not under any circumstances whatsoever cease to be our assets and property including without limitation the liquidation, receivership, judicial management, winding up of the Company or any other proceedings related to the insolvency of the Company.

10. Every notice, demand, certificate or other communication given or made by your Company to us shall be deemed to be given and received if sent to us at the address or facsimile number provided by us or such other address or facsimile number as may from time to time be notified to your Company by us and your Company shall not be responsible for the consequence of any notice, demand, certificate or other communication not being received by us.

11. Any notice, demand, certificate or other communication delivered personally shall be deemed to be given and received at the time of such delivery. Any notice, demand, certificate or other communication despatched by registered letter shall be deemed to have been given and received 48 hours after posting. Any notice, demand, certificate or other communication transmitted by telex or facsimile transmission shall be deemed to have been given and received at the time of transmission and any notice, demand, certificate or other communication sent by cable shall be deemed to have been given 24 hours after despatch. The facsimile transmission report shall be prima facie evidence of the act, date and time of transmission.

K. TERMS AND CONDITIONS

The Applicant (hereafter referred to as 'we', 'us' or 'our') hereby declare, confirm, acknowledge, authorise and agree with CIMB Investment Bank Berhad (hereafter referred to as 'you' or 'your') as follows:

General Terms and Conditions Applicable to All Trading Accounts

1. undertake to abide by all statutory enactments, rules, regulations, by-laws, directives of Bursa Malaysia Securities Berhad (Bursa Securities), any other stock exchanges and/or any other relevant authority and any subsequent new statutory enactments, rules or regulations, amendments or revisions that may be from time to time brought into force or imposed;

2. all transactions by you on our behalf shall be subjected to the applicable constitution, by-laws, rules, regulations, customs, usage, rulings and interpretations ("Rules") of the relevant stock exchanges on which the non-Ringgit securities are listed and its clearing organisation on which such transactions are executed or cleared by you or your agents or any of its affiliates for our account, to all applicable Rules of governmental/foreign government authorities and self-regulatory organisations and to all applicable laws and regulations promulgated thereunder. You shall not be liable to us as a result of any action taken by you or your agents or any of its affiliates to comply with any such Rules, law or regulation, including, without limitation, any liquidation, in whole or in part, of our positions or any other action taken in the event that any stock exchanges declares an emergency;

3. declare that the information given herein is true and correct and that we have not withheld any material fact or information from you. We authorise you to verify, in any manner with any third party, the information furnished herein or from time to time as you deem fit and we further undertake to furnish you promptly with such further additional and/or material change of information as you require at any time or from time to time;

   We also authorise you to make any checks and/or obtain any information and/or confirmation, with or from any credit reference agencies, and/or from any financial institutions, on us or any other person, individual and/or entity as you may deem fit, for any purposes which you deem fit.

4. declare that no winding-up proceedings have commenced against us as at the date hereof and we are not a defaulter on Bursa Securities Defaulters List;

5. agree that you may have the absolute discretion to close or suspend our account without giving any reason whatsoever (including but not limited to the non-trading nature of our account, amounts owing to you or it being dormant);

6. acknowledge and agree that we will always abide by all terms and conditions imposed by you relating to the services extended to us herein and our account and that you may at any time and from time to time impose or vary such other terms and conditions in your sole and absolute discretion. Upon the imposition or amendment being posted by you on your website ("the Site") or being notified to us via the mail, notice of the same shall be deemed to have been effected at the time when the notice is posted on the Site or within seven (7) days of mailing of the notice (as the case may be).

   By our continuing to trade or give any order(s) for trade subsequent to the effective date of notice, we shall be deemed to have agreed to and accepted the new or amended terms and conditions imposed by you whereof these provisions shall be binding upon us from the date of posting. The relevant provisions of this Agreement shall thereafter be deemed to have been amended, modified, supplemented and/or varied accordingly and shall be read and construed as if such amendments, modification, supplements and/or variations had been incorporated in and had formed part of this Agreement at the time of execution hereof;

7. represent and warrant that we have good title to such shares, stocks or securities that we may sell through you and undertake to promptly deliver to you documents of title in respect of securities sold by us or on our behalf;

8. undertake to make immediate payment to you in respect of securities purchased by us or on our behalf and to pay an amount in advance or security deposit if required for such purchases or in connection with our account;

9. authorise you in your absolute discretion to carry out such "selling-out" or "buying-in" of stocks, shares or securities to clear our account position and indemnify you in full against all losses, costs and expenses incurred resulting (directly or indirectly) from the above transactions executed by you on our behalf;

10. agree and undertake to settle immediately all sums of money due on contra losses or other monies howsoever owing under our account and authorise you to utilise and set-off any contra profit/gain or proceeds from any sales or monies due to us towards payment or settlement of our liabilities incurred under any accounts maintained with you and or with Bumiputra-Commerce Holdings Berhad and its group of companies. In this regard, you shall be entitled (but not obliged) to make any set-off from our account prior to actual payment by us of sums owing to you;

11. agree and undertake to pay you promptly interest costs and all charges including late payment charges at such rate(s) determined by you on the outstanding debit balance of our account. We shall pay all fees, service fees, commission and other charges relating to the transactions which you shall determine and impose from time to time, including legal fees incurred by you on a solicitor and client basis in the enforcement of any of our obligations and liabilities;

12. agree that you shall not be responsible or liable for any losses or damages (including any lost profits, lost savings or other consequential, special or indirect damages) as a result of any act of God, computer-breakdown interruptions omission errors or delays occurring in the electronic transmission, modem connection, act of public enemy, war, insurgency riot, labour disputes, strike, power failure, any act or omission of your support or solutions partners or any other disturbances arising out of matters or through causes/circumstances beyond your control;

13. agree that we shall not hold you or any of your officers, employees or agents responsible or liable for whatever losses incurred as a result of the acts, representation and/or omission of our dealer's representative in carrying out his/her duties in connection with our account;

14. agree that all orders made through the telephone or the internet trading facilities shall be deemed to be confirmed and binding on us without any requirement to furnish proof to you. In this regard, you may operate our account and execute trades upon receipt of either our oral or written instructions believed by you to be authentic or genuine and to have been given by such one or more person(s) as notified by us from time to time in writing and you shall not be made responsible or liable for any loss that may result from unauthorised instructions. You are entitled (but not obliged) to seek further evidence to confirm or verify the authenticity of any instructions given or purported to be given by us, without incurring any liability in that respect;

15. agree that you shall have the right at any time to refuse to act on our behalf, refrain from executing our orders or limit the purchases or sales ordered by us without having to disclose any reason whatsoever for your refusal to act;

16. authorise you to deal in any manner including but not limited to sale or disposal of the whole or part of the stocks/shares/securities pledged to you or howsoever held or maintained under or in relation to our account (including our CDS account) including without limitation to the utilisation of all or any cash or securities standing to the credit of our account at any time without notice to us and utilise the proceeds to set off and discharge any or all our liabilities and obligations due and owing to you. We further agree that you shall not be liable for any claims whether in contract, tort or otherwise, demands, actions or proceedings, losses and expenses including legal costs and all other liabilities of whatsoever nature or description which may be incurred or suffered by us arising from the sales of the said stocks/shares/securities.

    We also agree that you may at your absolute discretion refuse to act on our instruction to effect transfer/withdrawal of securities held in our CDS account in the event there is an outstanding debt due to you in our trading account;

17. undertake to confirm the accuracy of all personal details and other particulars within fourteen (14) days of notice by you that our account has been first opened and in all other cases, promptly as and when requested by you;

18. declare and agree that subject to paragraph 6 above, all communication, notices, demands or other documents required to be given or supplied may be given to us or our dealer's representative by your authorised officer/ representative or solicitor and all such communications, notices and demands shall be deemed to be validly served if delivered by hand or sent by e-mail, telex, facsimile, courier or by post to our address as stated in the application form or last known address;

19. agree that the failure or delay by you to insist on compliance with any of these undertakings, terms and conditions or any continued course of such conduct by you shall not be construed or constituted as a waiver or relinquishment generally or specifically by you of any rights, power, privileges or remedies accruing to you;

20. declare that if any undertakings, terms and conditions herein contained, shall be held to be invalid, unenforceable, illegal or otherwise, the invalidity, unenforceability and illegality shall not affect or impair the remaining terms and conditions herein;

21. acknowledge that all provisions of this Agreement are to survive any changes or successions in our business/organisation whether by merger, consolidation or otherwise and acknowledge that all provisions of this Agreement together with any liabilities incurred by us hereunder shall be binding upon all our heirs, executors, administrators, personal representatives, successors-in-title, receivers, trustees in bankruptcy and assignees;

22. confirm that we shall not assign any rights, titles or interests to our account, this Agreement or under the services extended herein to any party without your prior written consent;

23. declare that all the agreements and undertakings herein contained and the rights and obligations therefrom shall be governed by and construed in all respects in accordance with the laws of Malaysia and we agree to submit to jurisdiction of the court of Malaysia;

24. agree to fully and effectively indemnify you and hold you harmless from and against and in respect of any and all losses, liabilities, cost, charges and expenses (including but not limited to solicitors fees on a solicitor and Client basis), claims, demands, action and proceedings whatsoever which may be taken against or incurred or sustained by you directly or indirectly from or by reason of or in relation to or arising from or in connection with (i) the use of our account for trading in Ringgit or non-Ringgit securities and/ or (ii) breach or violation of the terms and conditions herein or any third party rights, including but not limited to any infringement of Intellectual Property rights. Our obligation to indemnify you shall survive the termination of this Agreement;

25. agree that you are entitled to terminate our account, the services extended herein and this Agreement:
    (a) at any time by prior notice of two (2) trading days; or
    (b) forthwith in the event of breach or potential breach by us of any terms herein or upon default or potential default of our obligations hereunder, without notice to us.

26. agree that you (including your officers, employees, agents or representative) are irrevocably authorised to furnish, transfer or disclose at your sole and absolute discretion any or all information in relation to or in connection with us and/or our account under this Agreement at any time and from time to time:
    (a) to any body or authority to whom you are related to or associated with including but not limited to all other companies however which are or which in the future may be associated or related with each other within the Bumiputra-Commerce Holdings Berhad group of companies;
    (b) to the Central Credit Bureau of Bank Negara Malaysia (BNM), Bursa Securities, Securities Commission or any other statutory or regulatory authority to whom you are required to make such disclosure;
    (c) to foreign authorities as a result of our dealing in securities that are listed and quoted on selected foreign stock exchanges;
    (d) to your auditors, legal counsels and other professional advisors;
    (e) to any assignee or potential assignee or other person purporting to enter into contractual arrangements with you in relation to this Agreement;
    (f) to such other person(s) authorised by you for confidential use in connection with or arising out of the operation of any accounts maintained with you (including but not limited to provision of information relating to data processing, statistical and risk analysis purposes);
    (g) to any person pursuant to any written law or order of any court of competent jurisdiction; or
    (h) to anyone you deem fit in your interest to do so;

AND we hereby expressly consent to such disclosure and agree that we shall not hold you, any of your officers, employees, agents or representative responsible or liable for disclosure of such information whether by reason of any misstatement, error, negligence, omission, delay or any matter in connection thereto whatsoever and whether before on or after the date of this Agreement;

27. you are irrevocably authorised to make enquiries and/or to request and receive ad-hoc statements of account in respect of our CDS account maintained with you as an Authorised Depository Agent, as and when you shall see fit and/or as deemed necessary by you in your absolute discretion and to disclose our balance enquiries on our CDS account for purposes of our trading transactions to our dealer's representative without the need to seek our consent;

28. unless otherwise disclosed in writing, we hereby confirm that we are the beneficial owner of our account, are acting for ourself and not as nominee, custodian, trustee and or for and on behalf of any other person;

Specific Terms and Conditions Applicable to Online Trading Account

29. undertake to safeguard any and all user names, passwords or other access codes ("Security Features") provided by you; and you may rightfully assume that any person using the Site with our user name and password is either us or is so authorised to act for us. In this regard, we agree that no claims shall be made by us or on our behalf in respect of any losses, costs and expense incurred by us as a result of such unauthorised usage of Security Features;

30. acknowledge that our use of some Links (as defined below) may be governed by additional terms and conditions. In the event we choose to visit or view any other website established through these Links, those additional terms and conditions:

    (a) will apply to our use of such Links in addition to these terms and conditions; and
    (b) will prevail over these terms and conditions to the extent of any inconsistency but only to the extent of those other websites.

    We further agree that:

    (i) you may (in your sole discretion) only establish a Link for us to access into the Third Party Content, which shall be on another website;
    (ii) you shall at no time be obliged to edit or manage (except to provide the Link) the Third Party Content nor verify the accuracy thereof; and
    (iii) you shall be entitled to exclude any liability in respect of the Third Party Content by the automatic appearance of an express disclaimer to that effect on the Site.

    "Link" here means any and all means by which one web page may permit its users/Visitors to connect to or view another web page, including, by creating hypertext, logo or other graphical links or by "framing" the Content of the other web page within the window or frame of a browser or other application.

    "Visitors" means any visitor, user, subscriber or viewer of the i*Trade@CIMB Portal.

    "Third Party Content" means any other information or content provided by any party other than you on i*Trade@CIMB.

31. agree and covenant that we shall not:

    (a) modify, reproduce or create in any manner any derivative works of the content in, under or to the Site for use, transmission, distribution or display on the Site or any other websites without your prior written consent;
    (b) retransmit, disseminate, sell, distribute, publish, broadcast, circulate or commercially exploit the information contained in, on or under the Site in any manner whatsoever without your prior written consent;
    (c) use the information contained on the Site for any illegal purposes or in such a manner as to encourage illegal activities;

32. agree to keep all information relating to the services extended to us herein (including any reports sent to us by you) secure and confidential and not allow any person to have access to them other than your authorised personnel who require such access to operate the services extended to us herein;

33. acknowledge that you are the owner of all copyright, designs, logos, trade names, trademarks, service marks and all other intellectual property (collectively "Intellectual Property") in, under or to the services extended to us herein, the Site and the content contained in the Site which shall at all times remain vested in you;

34. confirm that we do not own any Intellectual Property right belonging to you and that nothing in this Agreement nor through the usage of the services extended to us herein shall confer any right, title or interest to the Intellectual Property in our favour;

35. agree that we will not tamper with nor do anything that will infringe your rights to the Intellectual Property and shall safeguard and protect the Intellectual Property at all times;

Specific Terms and Conditions Applicable to Cross Border Securities Trading Via Existing Trading Account

36. that our trading in securities listed on foreign exchanges ("Cross Border Securities Trading") shall be conducted via your preferred foreign counter party. We further understand and acknowledge that any information displayed on the third party website shall not be applicable to our Cross Border Securities Trading activities. For the avoidance of doubt, we shall all times only refer to the information and Frequently Asked Questions ("FAQs") on our Cross Border Trading Options at www.itradecimb.com;

37. that we shall be bound by any other terms and conditions of agreements executed between you and your foreign counter party (ies) in relation to services rendered to facilitate our Cross Border Securities Trading and shall also read and fully understand your online FAQs at www.itradecimb.com before commencing any Cross Border Securities Trading activities. In relation to internet trading facilities, you may, in your absolute discretion, determine and vary the frequency, manner of use or availability thereof to us from time to time;

38. you may in your absolute discretion determine and vary the available limit based on the proportionate ratio determined by you from our approved limit or our securities deposited and maintained with you for our dealing in Cross Border Securities Trading through conventional means or the internet trading facilities, as the case may be. We further agree that you shall have the right at any time to refuse our orders or limit the purchases/sales given by us;

39. undertake to pay you promptly any fees or other charges imposed by any other stock exchanges or clearing organization; any taxes imposed by any competent authority on any accounts opened or transaction effected for us; and any fines or other penalties imposed by any competent authority except to the extent that such fines or other penalties may be imposed due to your gross negligence or wilful misconduct;

40. understand and acknowledge that any trading recommendations and market or other information communicated by you to us are incidental to the provision of services by you to us under the trading terms and do not constitute an offer to sell or the solicitation of an offer to buy any securities whether listed on Bursa Securities or any other stock exchanges. Such recommendations and information although based upon information obtained from sources believed by you to be reliable, may be incomplete, may not have been verified and may be changed without notice to us. No representation, warranty or guarantee is made by you as to the accuracy or completeness of any market or other information or trading recommendations furnished to us or as to the tax consequences of our transactions;

Specific Terms and Conditions Applicable to Day Trade Facility

41. specific terms and conditions including but not limited to brokerage rates applicable to Day Trade Facility involving trading of a particular securities where the outstanding purchase positions are settled against sale positions of the same securities and where the purchase and sale transactions are transacted on the same date effected via phone or i*Trade@CIMB internet orders or any other mode are as set out or stipulated in the Rules of Bursa Securities which may be varied or amended from time to time of which we have read and fully understood;

Specific Terms and Conditions Applicable to Securitised Trading Account

42. collateral must be deposited with you and shall be of a type and amount acceptable to you. The trading limit shall depend on the amount of the collateral deposited provided always that you may impose a maximum limit for trading;

43. you may cap or discount the value of shares (or other securities) provided as collateral for the purpose of determining the trading limit;

44. to provide and deposit (at our cost and expense) additional collateral at any time upon your request, together with all required documents (e.g. duly completed and valid transfer forms, etc.);

45. you may suspend, withdraw or terminate the Securitised Trading Account and release such suspension at any time at your sole and absolute discretion;

46. where any amount outstanding or owing is not settled promptly (whether demanded or not) collateral shall be utilised to settle the amount outstanding or owing. Utilisation/realisation of collateral shall be in the priority as determined by you, and collateral will be realised to the extent of the amount deemed required by you;

Specific Terms and Conditions Applicable to Islamic Broking Services

47. in relation to the Islamic Broking Services ("IBS"), we acknowledge that IBS is based on Shariah principles and that you will only deal for us in Shariah compliant securities approved by the Shariah Advisory Council of the Securities Commission. You shall not be obliged to place any surplus funds in a Mudharabah account in the absence of our specific written instructions;

48. item 11 of the terms and conditions contained herein shall not be applicable to IBS and shall be substituted by item 48 (i) below:

    (i) we agree and undertake to pay you promptly costs and all charges including Ta'widh (compensation) on any outstanding amount payable to you at the rate or in the manner prescribed by the Shariah Advisory Council of the Securities Commission of Malaysia. We shall pay all fees, service fees, commission and other charges relating to the transactions which you shall determine and impose from time to time, including legal fees incurred by you on a solicitor and client basis in the enforcement of any of our obligations and liabilities.

Interpretation of Provisions Applicable to All Accounts

49. in the event of any inconsistency between the General Terms and Conditions and the Specific Terms and Conditions, the provisions which on interpretation are most favorable to you shall prevail;

50. words in the singular number only shall include the plural number and vice versa.

L. PAYMENT INSTRUCTION

We hereby request that all payments (including but not limited to sales proceeds and credits) due to us from CIMB Investment Bank Berhad from time to time under our trading accounts opened with you be made in the following manner:

☐ credit directly into our *CIMB Bank Berhad / CIMB Islamic Bank Berhad Account No. ☐☐☐☐☐☐☐☐☐☐☐☐☐☐☐☐

(Please enclose a photocopy of the Applicant's Latest Bank Statement for verification purposes)
** Delete whichever is not applicable*

☐ by cheque(s) and hereby authorise our Dealer's Representative/Authorised Officer of CIMB Bank Berhad to collect the said cheque(s) due to us from time to time.

☐ credit directly into our trust account maintained with you and further agree that you shall have the absolute discretion to determine whether any interest is to be paid.

In consideration of you agreeing to this request, we hereby agree:

1. to refund to CIMB Investment Bank Berhad of any payments wrongly made to us or wrongly credited into the above mentioned bank or trust account;
2. not to hold you responsible for any losses arising thereof and undertake to indemnify you at all times against all claims, losses or expenses incurred by you in connection with this instruction; and
3. the above payment instruction shall remain in force until further notice by us in writing provided always that CIMB Investment Bank Berhad shall be entitled to with or without prior written notice to us and at its sole and absolute discretion vary any of the above mode or manner of payment to us**.**

M· DECLARATION BY APPLICANT

By signing this Account Application Form, we hereby declare/agree/undertake that:

1. We are not insolvent, under any winding up proceedings or placed under any receiver or manager and are not a defaulter on Bursa Securities Defaulters List;
2. We have read, understood and agreed to comply with the Terms and Conditions, including Call Warrant Risk Disclosure Statement, as set out under part I to K of this Application Form, including such additional amendments or terms and conditions as may be made from time to time;
3. Under Rule 404.3(7)(a) of the Rules of Bursa Securities, we do solemnly declare that the dealings in securities in respect of our trading account are/shall be carried out :

   ☐ for us as principal.

   ☐ for and on behalf of another party(ies) from whom, through whom or on whose behalf the securities are to be dealt with. Applicant may be required to execute additional documents in accordance to the Rules of Bursa Securities.

   Particulars

   Name of party(ies) concerned : _____

   Company / NRIC No. : _____

   Address / Registered Address : _____

4. Applicable for Cross Border Securities Trading only (Please tick where applicable)

   ☐ We do not have domestic ringgit credit facilities as defined under the Exchange Control Notices of BNM.

   ☐ We have domestic ringgit credit facilities as defined under the Exchange Control Notices of BNM and we further declare that we are fully aware of the exchange control regulations imposed by BNM and agree that it is our responsibility to ensure that our investments abroad at all times shall be within the limit(s) imposed by BNM from time to time.

And we make this solemn declaration conscientiously believing the same to be true.

AFFIX COMPANY STAMP / SEAL HERE

Authorised Signatory	Authorised Signatory
Name:	Name:
New NRIC/Passport No.:	New NRIC/Passport No.:
Designation:	Designation:
Date:	Date:

*Signature Of Dealer's Representative / Witness

Name:

New NRIC/Passport No.:

Date:

** Delete whichever is not applicable*

Staff ID & Branch Code :

Affixation of Bank's Rubber Stamp
(For Use of CIMB Bank Berhad Only)

N. TO BE COMPLETED BY DEALER'S REPRESENTATIVE/AUTHORISED OFFICER OF CIMB BANK BERHAD

Proposed Trading Limit (RM)		Proposed Ratio For	
		Trading on Bursa Securities (%)	Trading on Other Exchanges (%)
Direct Trading Account			
Securitised Account - Direct			
Securitised Account - Nominee			

Type of Account	BFE Short Name	Proposed Ratio For	
		Phone Orders (%)	Online Trades (%)
Direct Trading Account			
Securitised Account - Direct			
Securitised Account - Nominee			

Sales Person :	Day Trade Facility : Yes / No	Rate :

Additional Information		
How do I know the Applicant / Directors / Name of Introducer	:	
No. of years I know the Applicant / Directors	:	Years
Existing trading limit with other broker	:	RM _____ Name of Broker: _____
Trading experience with client	:	
Other relevant information to justify the proposed limit	:	
Cash / shares to be deposited Please provide counter & quantity if any	:	Cash: RM Shares: RM

I hereby

1. request CIMB to allow the Applicant to open a trading account with the Company.
2. confirm that the information given by me above is true and I have not withheld any information which might prejudice this application;
3. declare I am aware that the Applicant is required to comply with all the terms and conditions accompanying this application form which CIMB may vary from time to time at its absolute discretion.
4. undertake to indemnify CIMB against any losses, damages, debts, charges and all other costs and expenses whatsoever incurred or suffered or which CIMB may incur or suffer in relation to CIMB opening the account of this Applicant and the subsequent operation thereof.

_____

Dealer's Representative/ Authorised Officer of CIMB Bank Berhad**

Name :

NRIC No. :

Date :

** Applicable to CIMB Bank Berhad Branch Broking Only

O. FOR OFFICE USE ONLY

Call Centre	Date Received :
BrokerLink Code:	Checked By /Date:

Data Management	
Checklist	✓
Application Form duly completed and signed by the authorized persons in accordance to the Board Resolution & DR / authorised officer of CIMB Bank (AO)	
Rule 404.3(7) - Client's Disclosure	
Board Resolution and signatory list with specimen signatures	
Memorandum & Articles of Association / Constitution / By-Laws	
Certificate of Incorporation and Change in Names, if any (Form 8/9/13) / Certificate of Registration	
Return of Allotment of Shares/ Annual Return (Form 24)	
Notice of Situation of Registered Office (Form 44)	
Certificate of Board of Directors and Company Secretary (Form 49)	
Audited Accounts / Financial Statement	
Solvency Declaration and Appointment of Stockbroker (applicable for share-buy back)	
Client's address verified against address of DR / AO	

Bursa Defaulter	:	Yes / No	Dealer Code :	:	
AML / CFT Watch List	:	Yes / No	Dlr Code for Clearing A/C	:	
Auto Averaging	:	Yes / No	Clearing A/C Type	:	

Remarks:

Parent Code	:		Classification	:	
Client Code	:	(Direct)	BFE Account Type	:	(Direct)
	:	(ST)		:	(ST)
Sales Person	:				
Completed & Verified By / Date	:				
Data Entry By / Date	:		Checked By / Date	:	

Capital Market Risk Monitoring					
Credit Search	:	Yes / No			
Recommended Trading Limit	RM	(Direct)	Approved Trading Limit	RM	(Direct)
	RM	(ST)		RM	(ST)
Recommended By / Date	:		Approved By / Date	:	

Compliance Department	
Verified By / Date	: